

PERFORMANCE WORK STATEMENT (PWS)

Unites States Army Garrison Rheinland-Pfalz (USAG RP) Regional Recyclables Collection- and Disposal Contract

Part 1

GENERAL INFORMATION

1. Introduction, Responsibilities, Management, Requirements, and Training

1.1 Introduction: This is a non-personnel services contract to provide recycling- and disposal services for USAG RP Installations within the Kaiserslautern Military Community (KMC) area as designated in the Solicitation and its attachments. The KMC area is inclusive of USAG RP installations and locations within Kaiserslautern-Kreis (District), Kaiserslautern city, and neighboring districts and cities. Services include, but are not limited to,

- Collection, transportation, segregation, treatment, storage and disposal and recyclable materials within the outlined geographical area
- Provide, maintain, and service permanent- and time-limited bins, containers, compactors, and corresponding number of potable pedestals
- Maintain and provide upon request any and all documentation to include, but not limited to, invoices, statistics, and Attachment D: Recycling Balance for Fiscal Year.

The Government shall not exercise any supervision or control over the contract service providers performing the services herein. Such contract service providers shall be accountable solely to the Contractor who in turn is responsible to the Government. The Contractor shall be a “Waste Management Company” (“Entsorgungsfachbetrieb”), certified in accordance with § 56 German “Closed Substance Cycle Waste Management Act” (“Kreislaufwirtschaftsgesetz”), and the German “Waste Management Company Ordinance” (“Entsorgungsfachbetriebeverordnung – EfbV”).

1.2 Background: Waste avoidance, recycling, and segregation is mandatory in Germany. Collection and removal of refuse and recyclables, in accordance with Host Nation and US-Army laws and regulations, are basic elements for clean, safe, and healthy installations. Without recycling and segregation of solid waste, funds will be wasted. Recycling recyclable materials is less expensive than disposing of those materials alongside regular refuse / trash.

1.3 Responsibilities: The Contractor shall assume total responsibility for all requirements stated herein on the commencement date of the performance period. The Contractor shall perform as specified in this contract and under the direction of the Contracting Officer (KO).

1.3.1 Work Responsibility: The Contractor shall perform all work and assume responsibility for planning, programming, administering, managing, and executing all functions necessary to provide the services specified in this PWS. The Contractor shall conduct work in accordance with this PWS and all applicable United States (U.S.), German (HN), and local laws, regulations, standards, provisions, and directives. The Contractor shall ensure that all work meets the level of service, performance standards, or tolerances specified in the PWS or in applicable referenced documents. Some services under this contract may be performed at designated facilities or portions of installations by in-house Government personnel or by other Contractors.

1.3.2 Administrative Responsibility: The Contractor shall perform all related administrative actions required to provide services or perform work such as material requisitioning, quality control (QC), financial control, meetings, and correspondence. The Contractor shall also maintain accurate and complete records, files, and libraries of documents to include all United States (U.S.)-, German (HN)-, and local regulations, -standards, -provisions, -codes, -laws, -technical manuals, and manufacturers' instructions and recommendations that are necessary and related to the functions being performed. The Contractor shall prepare required reports and submit information as specified by the "Attachment List" presented in this PWS.

1.4 Objectives: Establish a safe and reliable system for the collection of recyclables. These services shall include pick-up, transportation, treatment, storage, segregation, and recycling / disposal of these recyclables for USAG RP Installations.

1.5 Functional Areas: Various USAG RP Installations outlined in ATTACHMENT A, "Recycling Collection Pickup Schedule".

1.6 Period of Performance (POP): The period of performance shall be for one (1) base year of twelve (12) months from 28 March 2025 to 27 March 2026 and one (1) option period of twelve (12) months.

1.7 Management and Administration

1.7.1 Phase In / Phase Out Period:

1.7.1.1 Phase In Period – Contractor shall be prepared to begin performance of Phase in services on the day of contract award. These services shall include the in processing of personnel (including establishment of installation access) and the

placement of containers, bins and pedestals at all locations outlined in this PWS. These services will be performed concurrently with the primary services of recyclables collection and shall be complete no later than thirty (30) calendar days after Contract Award. There is no space for multiple bins / containers / compactors to allow for longer phase- in

1.7.1.2 Phase Out Period - Contractor shall be prepared to begin performance of Phase Out services thirty (30) Calendar days prior to completion of the Period of Performance. Phase Out services include the emptying of all bins and containers at all USAG RP locations as well as the removal of all bins, containers and pedestals from these locations.

1.7.1.3 Deliverables. Contractor shall submit commencement and completion reports in accordance with Deliverable A 001 of Technical Exhibit B. These reports shall be submitted to the KO and the COR at the beginning and end of the Phase In and Phase Out periods.

1.7.2 Contractor Management: The Contractor shall perform continual management of the functional areas and services contained in this PWS and shall provide a Project Manager (PM). PM shall be physically present during normal duty hours. The PM shall conduct overall management coordination and shall be the central Point of Contact (POC) with the Government for the performance of all work and services under this PWS. (A.002)

In addition to the PM, an alternate PM shall be designated to act for the PM, when work is being performed outside of duty hours, or during the PM's absence. Both, the PM and the alternate PM shall have full authority to act for the Contractor on all contract matters relating to daily operation of this contract. (A.002)

PM and alternate PM shall be designated in writing. The PM and the alternate PM shall have adequate knowledge of solid waste and recyclables collection, transportation, disposal business. Adequate knowledge shall be demonstrated by experience in Solid Waste Management, including the application of and adherence to German waste management law, as well as certifications in accordance with § 56 German Closed Substances Cycle Waste Management Act (Kreislaufwirtschaftsgesetz) and the German Waste Management Company Ordinance (Entsorgungsfachbetriebsverordnung - EfbV). The PM and alternate PM shall possess a professional working proficiency of both German and English languages, specifically in regards to Waste Management terminology. Both the PM and alternate PM shall have a current Certificate of Good Conduct (Führungszeugnis) with no records of criminal convictions and be eligible to obtain USAG RP Installations access. (A.002)

At the Post Award Conference, the Contractor shall submit names, titles, Email addresses, office, home, and mobile telephone numbers of the PM and the alternate PM to the Contracting Officer Representative (COR) in writing. (A.002)

1.7.3 Contractor Responsiveness: The PM or the designated alternate shall be available for telephone communication or site attendance with the COR between the hours of 07:30 hrs. and 16:00 hrs. Monday thru Friday, except American Federal holidays, German holidays, or when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government directed facility closings. A personal answering service is permitted at other than normal contract workdays and work hours for the receipt of COR emergency response work requirements. The PM or the designee shall respond to all calls, emails, etc. within a time frame not exceeding two hours after notification by the answering machine and / or service. The PM and any individual designated to act in that capacity shall have full authority to contractually bind the Contractor for prompt action on matters pertaining to execution of the PWS.

1.7.4 Meetings, Conferences, and Briefings: The Contractor shall attend, participate in, and furnish input to scheduled and unscheduled meetings, conferences, and briefings that relate to the functions and services herein as required by the Government to provide effective communication and impart necessary information. The PM or the designated representative shall attend the meetings as requested by the Government. At times, meeting attendees shall include Contractor managerial, supervisory, and other stakeholder personnel who knowledgeable about the subject matter of the particular meeting. Meetings may start or end within of regular duty hours.

1.7.5 Hours of Operation: The Contractor is responsible for conducting business between the hours of 07:00 hrs. and 17:00 hrs. Monday thru Friday, except American Federal holidays, German holidays, or when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government directed facility closings. The Contractor shall maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS when the Government facility is not closed for the above reasons at all times. When hiring personnel, the Contractor shall keep in mind that the stability and continuity of the workforce are essential.

1.7.6 Recognized Holidays: The Contractor is not required to perform services on American- or German holidays. Instead, the Contractor shall perform services the day before or after (just as established German practice).

American Holidays:

January 1 st :	New Year's Day
January 3 rd Monday:	Martin Luther King Jr.'s Birthday
February 3 rd Monday:	President's Day
May, last Monday:	Memorial Day
June 19 th :	Juneteenth
July 4 th :	Independence Day

September 1st Monday: Labor Day
October 2nd Monday: Columbus Day
November 4th Thursday: Thanksgiving Day
November 11th: Veteran's Day
December 25th: Christmas Day

Holidays in the State of Rheinland-Pfalz:

January 1st: Neujahr
April, variable: Karfreitag
April, variable: Ostermontag
May 1st: Tag der Arbeit
May, variable: Christi Himmelfahrt
June, variable: Pfingstmontag
June, variable: Fronleichnam
October 3rd: Tag der Deutschen Einheit
November 1st: Allerheiligen
December 26th: 1. Weihnachtstag
December 27th: 2. Weihnachtstag

1.7.7 Training Holidays: USAREUR-AF has historically granted military personnel Training Holidays as compensation for time that they spent in field training. These are typically combined with regular holiday leave schedules (for example, Christmas half days or day on day off schedules). Training Holidays may affect access to military operated facilities. If scheduled services or access to facilities is required, coordination with occupants will be necessary or the services in affected facilities. Services shall be rescheduled before or after the training holiday. However, announced training holidays or exodus of military personnel may provide the Contractor with an opportunity for unrestricted access to facilities and areas. The Contractor shall take full advantage of such opportunities by planning services or actions that are better accomplished when such areas are vacant.

1.7.8 Quality Control: The Contractor shall develop and maintain an effective Quality Control Plan (QCP) to ensure services are performed in accordance with this PWS. The Contractor shall develop and implement procedures to identify, prevent, and ensure non- recurrence of defective services. The Contractor's QCP is the means by which the Contractor assures the services comply with the requirements of the contract.

The QCP shall be submitted to the KO via the COR within 14 days of contract award. After acceptance of the QCP, the Contractor shall receive the Contracting Officer's (KO) acceptance in writing of any proposed change to the QCP. (A.003)

1.7.9 Quality Assurance: The Government shall evaluate the Contractor's performance under this contract in accordance with the Quality Assurance Surveillance Plan (QASP). This plan is primarily focused on what the Government must do to ensure that the Contractor has performed in accordance with the performance standards. It defines how the performance standards will be applied, the frequency of surveillance, and the minimum acceptable defect rate(s).

1.7.10 Place of Performance: The services to be performed under this contract shall be performed at all places named in ATTACHMENT A, Recycling Collection Pickup Schedule.

- Breitenwald Training Area – L465, 66849 Landstuhl
- Landstuhl Hospital (LRMC), Dr. Hitzelberger Strasse, 66849 Landstuhl
- Landstuhl Heliport, L470, 66949 Landstuhl
- Miesau Ammo Depot, Bahnhofstrasse, 66892 Bruchmühlbach-Miesau
- Sembach Kaserne, Am Heuberg, 67681 Wartenberg-Rohrbach
- Weilerbach Storage Area, 67685 Kaiserslautern

The Contractor shall perform a continuously service in all weather conditions, open areas, and controlled areas, requiring additional access control.

1.7.11 Type of Contract: Firm-Fixed Priced (FFP) contract type.

1.7.12 Security Program: Contractor personnel performing services under this contract shall have a clean "Certificate of Good Conduct" (Führungszeugnis) at time of the proposal submission and must maintain the level of security required for the life of the contract. The Contractor shall deliver the Certificate of Good Conduct for each contractor personnel to the COR 5 (five) days after contract award. Upon the occasion of a change in personnel, the Contractor shall provide the Certificate of Good Conduct for the effected personnel within 5 (five) days of the personnel change. (A.004)

For reasons of force protection, issuing of "Installation Access Cards" ("Kasernenausweise") is limited to 8 (eight) persons. To reduce fluctuation, a maximum of 3 (three) Installation Access Cards can be changed per year of performance.

1.7.13 Physical Security: The Contractor shall safeguard all government equipment, information, and property provided for Contractor use. At the close of each service period, Government facilities, equipment, and materials shall be secured in accordance with the Army Physical Security Program (AR 190-13).

1.7.14 Installation Access: Access to U.S. Installations and controlled areas are limited to personnel who meet security criteria and are authorized by Host Nation law to work in that Country. Failure to submit required information / data and obtain required documentation or clearances in accordance with Army in Europe (AE)

Regulation 190-16 for Installation Access Control or AE Regulation 604-1 for Germany specific contracts, will be grounds for denying access to U.S. Installations and controlled areas. The Contractor shall ensure that any Subcontractors used in performance of this contract complies with these requirements and that all employees, of both the Contractor and any Subcontractor utilized by the Contractor, are made aware of and comply with these requirements. Should anything in this paragraph conflict with AE Regulation 190-16 or AE Regulation 604-1, the regulation takes precedent.

The Contractor shall be aware of and comply with the requirements associated with Installation Access Control. The Government is not liable for any costs associated with performance delays due solely to a firm's failure to comply with Installation Access Control System (IACS) processing requirements. The Contractor shall return Installation Passes to the issuing IACS Office when the contract is completed or when a Contractor employee no longer requires access.

AE Reg 190-16 and the AE 190-16-G German translation can be found on at: www.aepubs.eur.army.mil

1.7.15 Key Control: The Contractor shall establish and implement methods of making sure that all keys, key cards, and combination lock combinations, issued to the Contractor by the Government, are not lost or misplaced and are not used by unauthorized persons. NOTE: All references to keys include key cards and combination lock combinations. No keys issued to the Contractor by the Government shall be duplicated. The Contractor shall develop procedures covering key control that shall be included in the Quality Control Plan (QCP). Such procedures shall include turn-in of any issued keys by personnel who no longer require access to locked areas. The Contractor shall immediately report any occurrences of lost or duplicate keys / key cards to the KO. In the event keys other than master keys, are lost or duplicated, the Contractor has to re-key or replace the affected lock or locks upon direction of the KO. However, at its option, the Government may replace the affected lock or locks or perform re-keying. When the replacement of locks or re-keying is performed by the Government, the total cost of rekeying or the replacement of the lock or locks shall be deducted from the monthly payment / invoice due the Contractor. In the event a master key is lost or duplicated, all locks and keys for that system shall be replaced by the Government and the total cost deducted from the monthly payment / invoice due the Contractor. The Contractor shall prohibit the use of Government issued keys, key cards, and combination lock combinations by any persons other than the Contractor's employees. The Contractor shall prohibit the opening of locked / secured areas by Contractor employees to avoid entrance of unauthorized persons other than Contractor employees engaged in the performance of assigned services to those areas. The Contractor shall establish and implement methods of ensuring that all lock combinations are not revealed to unauthorized persons. The Contractor shall ensure that lock combinations are changed when personnel having access to the combinations no longer have a need to know such combinations. All aforementioned procedures have to be included in the Contractor's Quality Control Plan (QCP) and

reported to the KO and the COR in writing immediately.

1.7.16 Special Qualifications: The Contractor is required to be a “Waste Management Company” (“Entsorgungsfachbetrieb”), certified in accordance with § 56 German “Closed Substance Cycle Waste Management Act” (“Kreislaufwirtschaftsgesetz”), and the German “Waste Management Company Ordinance” (“Entsorgungsfachbetriebsverordnung – EfbV”). The Contractor shall maintain active waste disposal / recycling licenses for all municipal administration districts relevant to this contract. The Contractor shall provide certified copies of the up to date “Waste Management Company” certificates and waste disposal / recycling licenses to the COR at the Post Award Conference, after renewals and at the begin of each option year / POP. (A.005)

1.7.17 Post Award Conference / Periodic Progress Meetings: The Contractor agrees to attend any post award conference convened by the Contracting Activity or Contract Administration Office in accordance with Federal Acquisition Regulation Subpart (FAR) 42.5. As appropriate and to review the Contractor’s performance, the Contracting Officer (KO), the Contracting Officers Representative (COR), and other Government personnel may meet periodically with the Contractor. At these meetings the KO will apprise the Contractor of how the Government views the Contractor’s performance and the Contractor shall apprise the Government of problems. Appropriate action shall be taken to resolve outstanding issues. These meetings shall be at no additional cost to the Government.

1.7.18 Contracting Officer Representative (COR): Refer to Part 2 of this PWS for the definition of COR. As determined by the Contracting Officer (KO), a COR will be appointed and identified by letter of designation, a copy of which will be provided to the Contractor by the KO. The designation letter states the responsibilities and limitations of the COR, especially with regards to changes in cost or price, estimates, or changes in delivery dates. The COR is not authorized to change any of the terms and conditions of the resulting contract. The COR monitors all technical aspects of the contract and assists in contract administration. The COR is not authorized to obligate the Government. If the work is not written in the contract, the COR is not authorized to request new work. The COR is authorized to perform the following functions: assure that the Contractor performs the technical requirements of the contract, perform inspections necessary in connection with contract performance, maintain written and oral communications with the Contractor concerning technical aspects of the contract, issue written interpretations of technical requirements, including Government drawings, designs, specifications, monitor Contractor’s performance, notifies the Contracting Officer (KO) and Contractor of any deficiencies, coordinate availability of Government property, and coordinate site entry of Contractor personnel.

1.7.19 Key Personnel: -reserved-

1.7.20 Identification of Contractor Employees: All contract personnel attending meetings, answering Government telephones, and working in other situations where their Contractor status is not obvious to third parties, are required to identify themselves as such to avoid creating an impression in the minds of members of the public that they are Government officials. They must also ensure that all documents or reports produced by the Contractor are suitably marked as contractor products or that contractor participation is appropriately disclosed.

1.7.21 Contractor Travel: -reserved-

1.7.22 Other Direct Costs: -reserved-

1.7.23 Data Rights: -reserved-

1.7.24 Organizational Conflict of Interest: Contractor and Subcontractor personnel performing services under this contract or have access to or participate in the development of proprietary, or source selection information (e.g. cost or pricing information, budget information or analyses, specifications or work statements, etc.), or perform evaluation services may create a current or subsequent Organizational Conflict of Interests (OCI) as defined in FAR Subpart 9.5. The Contractor shall notify the KO immediately whenever it becomes aware that such access or participation may result in any actual or potential OCI. The Contractor shall promptly submit a plan to the KO to avoid or mitigate any such OCI. The Contractor's mitigation plan will be determined to be acceptable solely at the discretion of the KO. In the event the KO unilaterally determines that any such OCI cannot be satisfactorily avoided or mitigated, the KO may affect other remedies as he or she deems necessary, including prohibiting the Contractor from participation in subsequent contracted requirements which may be affected by the OCI.

1.7.25 Safety: The Contractor shall comply with all safety and fire regulations as prescribed by the German Accident Prevention Regulations and the Accident Insurance Companies ["Unfall-Verhütungsvorschriften der Berufsgenossenschaften (UVV) und der Unfallversicherungen"]. In case of an accident, the Contractor shall forward one completed copy of locally required accident reports to the COR not later than one workday after the occurrence of an accident / injury to its personnel. (A.006)

At all times, and when used in performance of this contract, on post for transport, collection, and disposal services, all vehicles shall always carry, at a minimum, one tested and functional six (6) Kilogramm dry chemical fire extinguisher (Trockenpulverlöscher) adapted to the order and Host Nation requirements.

1.7.25.1 Safety Plan and Program: -reserved-.

1.7.26 Environmental Compliance: The Contractor shall adhere to all German- and US- Army environmental protection amendments.

1.7.27 General Requirements: The Contractor shall provide services including, but not limited to, providing and maintaining several various permanent and time-limited containers, bins, compactors, as well as the necessary number of potable pedestals for the collection of recyclables and all types of waste (Abfallarten) at USAG RP Installations named in ATTACHMENT A. This includes, but is not limited to, pick-ups, transportation, treatment, storage, segregation, recycling / disposal, and the necessary documentation (invoices, statistics, ATTACHMENT D) for all types of waste and materials described in ATTACHMENT C.

The Contractor shall guarantee sufficient staff, equipment, and vehicles (incl. reserve) in order to avoid service-interruptions due to illness or equipment malfunctions. Contractor shall maintain, at a minimum, the following machinery and equipment for this requirement:

- Umleerfahrzeuge (pick-up trucks) – Two (2) plus one (1) reserve.
- Absetzkipper (bucket-vehicle truck) – One (1) plus one (1) reserve.
- Abrollkipper (slide-vehicle truck) – Two (2) plus one (1) reserve.
- Glasfahrzeug (glass-container discharge-vehicle) – One (1) plus one (1) reserve.

The Contractor shall guarantee and document “Safety at Work” (UVV) for all containers, bins, and compactors. The containers, bins, and compactors must be stable, clean, damage-free and all fixtures, doors, lids, wheels and rollers of the equipment shall be available, safe and fully functional. All equipment shall be the most current model, properly labeled in accordance with Attachment C of this PWS, and shall comply with all German law specifications and safety standards within the whole Period of Performance (POP) at all times.

The Contractor shall provide all necessary documentation under German law “Proof of Waste Disposal” (“Entsorgungsnachweise”), “Mass Flow” (“Mengenstrom”), “Certificate of Utilization” (“Verwertungsnachweise”) inclusive register-keeping for all affected types of waste. The Contractor shall provide a report of the disposed types of waste (recycled and non-recycled, with / without cost value) at the end of each quarter using ATTACHMENT D, “Recycling Balance” (“Bilanz zu Abfallmengen & Kosten pro Quartal im Rechnungsjahr”), that will be a “living document”. Next to the number of tons per type of waste, the Contractor shall provide information about the method of recycling or disposal like incineration, incineration with thermal dissipation, and energy recovery to the COR quarterly. (A.007)

The Contractor shall provide an up-to-date list with names, addresses etc. of all Subcontractors and Partners involved in and used for all services described in this PWS (such as collection, transportation, recycling / disposal, treatment, storage, and segregation of surrendered goods and waste streams) on the day the contract gets

awarded. The Contractor shall maintain this list and report any changes to the KO and the COR within 5 workdays of any changes. The Contractors shall report any changes for the company name, the address, changes in internal company responsibility, and takeover, to the KO and the COR within 5 workdays of any changes. (A.008)

The contractor shall provide detailed monthly invoices were the USAG RP Installation, the building number, the number of services per building with the service date, the type of waste with the associated unit prices, the size of the collection bins / containers / compactors, and the weight of the recyclables collected / disposed are easily comprehensible. The Contractor shall provide invoices were the transportation, the disposal, and the recycling cost per type of waste are easily comprehensible. The Contractor shall send invoices inclusive all accompanying documentation, such as the "Certificate of Transport" ("Transport-Nachweis") and "Weight-Slips" ("Wiegescschein"), to the COR until the 8th workday of the month following the services. (A.009)

For reasons of force protection, the Contractor shall guarantee the equipment used for these services shall be stored at a secured facility at the end of each workday. Vehicles and equipment shall not be stored or parked overnight in an open and unsecured public traffic area ("lantern parking").

If a Subcontractor is utilized for the performance of any tasks in this PWS, all requirements apply to both Contractor and Subcontractor alike.

1.8 Required Training: -reserved-

1.9. OPSEC (Operations Security)

1.9.1. Access to Government Information Systems: N/A.

1.9.2. Contractor OPSEC Standing Operating Procedure / Plan: The Contractor shall develop an OPSEC Standing Operating Procedure (SOP) / plan within 30 (thirty) calendar days after the contract is awarded, to be reviewed and approved by the Government OPSEC Officer, according to AR 530-1. This SOP / plan will include the Government's critical information, why it needs to be protected, where it is located, who is responsible for it, and how to protect it. The contractor shall submit the Operating Plan to the COR within 30 (thirty) calendar days of contract award. (A.010)

1.9.3. Contractor OPSEC Training: According to AR 530-1, new Contractor employees shall complete Level I OPSEC training within 30 calendar days after they report for duty. Contractor shall submit certificates of completion to the COR within 30 (thirty) days. (A.010)

1.9.4. Anti-Terrorism: All Contractor employees, including Subcontractor employees, requiring access to Army installations, facilities, and controlled-access areas will complete AT Level I awareness training within 30 (thirty) calendar days after the contract start-date or effective date of incorporation of this requirement into the contract, whichever is applicable. The Contractor shall submit certificates of completion for each affected Contractor employee and Subcontractor employee to the COR and to the Contracting Officer (KO) within 30 calendar days after training is completed by all Contractor- and Subcontractor personnel and employees. AT Level I awareness training is available online at: <https://atlevel1.dtic.mil/at>.

All Contractor and all associated Subcontractors personnel and -employees shall provide all information required for background checks to meet installation access requirements to be accomplished by Installation Provost Marshal Office, Director of Emergency Services, or Security Office. Contractor workforce must comply with all personal identification verification requirements (FAR clause 52.204-9, Personal Identity Verification of Contractor Personnel) as directed by DOD, HQDA, and / or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition (FPCON) at any individual facility or installation change, the Government may require changes in Contractor security matters or processes.

All Contractor and all associated Subcontractors employees and personnel shall comply with adjudication standards and procedures using the National Crime Information Center Interstate Identification Index (NCIC-III) and Terrorist Screening Database (TSDB) (Army Directive 2014-05/AR 190-13), applicable installation, facility and Area Commander installation / facility access and local security policies and procedures (provided by Government Representative), or at OCONUS locations, in accordance with status of forces agreements and other theater regulations.

The Contractor and all associated Subcontractors shall brief all employees on the local iWATCH/iSALUTE program (training standards provided by the requiring activity (ATO). This locally developed training will be used to inform employees of the types of behavior to watch for and instruct employees to report suspicious activity to the COR. This training will be completed within 30 (thirty) calendar days after the contract is awarded and within 30 (thirty) calendar days after new employees commence contract performance, with the results reported to the COR within 30 (thirty) calendar days after the contract is awarded. (A.010)

Per AR 381-12, Threat Awareness and Reporting Program (TARP), Contractor employees shall receive annual TARP training by a CIA agent or other trainer as specified in 2-4b. Contractor shall submit certificates of completion to the COR within 30 (thirty) days. (A.010)

PART 2 DEFINITIONS AND ACRONYMS

2.1 Definitions:

Contractor - A supplier or vendor awarded to a contract to provide specific supplies or services to the Government. The term used in this contract refers to the prime.

Contracting Officer (KO) - A person with authority to enter into, administer, and or terminate contracts, and make related determinations and findings on behalf of the Government. Note: the only individual who can legally bind the Government.

Contracting Officer's Representative (COR) - As defined in DFARS 202.101, means an individual designated and authorized in writing by the Contracting Officer (KO) to perform specific technical or administrative functions. Department of Defense Instruction (DoDI) 5000.72, Part II Definitions states the following when defining a COR: "Defined in subpart 202.101 of Reference (f). Any individual delegated responsibilities pursuant to subpart 1.602-2 of Reference (e), regardless of local terminology, must be certified in accordance with this instruction. For example, local terminology can be COR, Contracting Officer's Technical Representative, Technical Point of Contact, Technical Representative, Alternate COR, Administrative COR, Assistant COR, Line-Item Manager, Task Order Manager, Quality Assurance Personnel, Quality Assurance Evaluator, or COR Management. In addition, Army Regulation 70-13, Chapter 2, paragraph 2-2g, states, in part, the following when providing support personnel to assist the COR: These other surveillance support personnel may serve as on-site representatives of the COR in performance of actual contract surveillance if they meet all COR requirements and have been appointed by the Contracting Officer as alternate CORs".

Defective Service - A service output that does not meet the standard of performance associated with the Performance Work Statement (PWS).

Deliverable - Anything that can be physically delivered but may include non-manufactured things such as meeting minutes or reports.

Key Personnel – Project Manager (PM) and Alternate Project Manager.

Physical Security - means that part of security concerned with physical measures designed to safeguard personnel to prevent unauthorized access to equipment, installations, materials, and documents, and to safeguard against espionage, sabotage, damage, and theft.

Quality Assurance – (or Government contract quality assurance) means the various functions, including, inspection, performed by the Government to determine whether a Contractor has fulfilled the contract obligations pertaining to quality and quantity.

Quality Assurance Surveillance Plan (QASP) - Means the key Government developed surveillance process document and is applied to Performance-Based Service Contracting (PBSC). The QASP is used for managing Contractor performance assessment by ensuring that systematic quality assurance methods validate that Contractor quality control efforts are timely, effective, and are delivering the results specified in the contract or task order. The QASP directly corresponds to the performance objectives and standards (i.e., quality, quantity, timeliness) specified in the Performance Work Statement (PWS). It provides specific details on how the Government will survey, observe, test, sample, evaluate, and document Contractor performance results to determine if the Contractor has met the required standards for each objective in the PWS. The QASP, with very few if any exceptions, is an internal to Government document.

Quality Control - All necessary measures taken by the Contractor to assure that the quality of an end-product or service shall meet contract requirements.

Subcontractor - One that enters into a contract with a prime Contractor. The Government does not have privity of the contract with the Subcontractor.

Workday - The number of hours per day the Contractor provides services in accordance with the contract.

Work Week - Monday through Friday, unless specified otherwise.

2.2 Acronyms:

AFARS Army Federal Acquisition Regulation Supplement

AR Army Regulation

CFR Code of Federal Regulations

COR Contracting Officer Representative

DA Department of the Army

DD250 Department of Defense Form 250 (Receiving Report)

DD254 Department of Defense Contract Security Requirement List

DFARS Defense Federal Acquisition Regulation Supplement

DOD Department of Defense

FAR Federal Acquisition Regulation

IAC Installation Access Control

IACO Installation Access Control Office

KO Contracting Officer

OCNUS Outside Continental United States (includes Alaska and Hawaii)

PIPO Phase In / Phase Out

POC Point of Contact

PRS Performance Requirements Summary

PWS Performance Work Statement

QA Quality Assurance

QAP Quality Assurance Program

QASP Quality Assurance Surveillance Plan
QC Quality Control
QCP Quality Control Program

PART 3

GOVERNMENT FURNISHED PROPERTY, EQUIPMENT, AND SERVICES

3. Government Furnished Items and Services

3.1 Services: -reserved-

3.2 Facilities: The Government will provide the space where the containers, bins, and compactors shall be placed.

3.3 Utilities: The Government will provide electric power for the operation of compactors.

3.4 Equipment: -reserved-

3.5 Materials: -reserved-

PART 4

CONTRACTOR FURNISHED ITEMS AND SERVICES

4. Contractor Furnished Items and Responsibilities

4.1 General: The Contractor shall furnish all equipment, facilities, and services required to perform services and work under this contract that are not listed under Part 3. of this PWS.

4.2 Secret Facility Clearance: -reserved-

4.3 Materials: The Contractor shall provide all materials necessary required to perform services under this contract.

PART 5 SPECIFIC TASKS

5.1 Basic Services: The Contractor shall provide services for collection, pick-up, transportation, storage, recycling / disposal, treatment, and segregation of recyclables and comparable wastes as per the schedule and frequency established in ATTACHMENT A.

The services consist of collection, pick-ups, transportation, storage, recycling / disposal, treatment, and segregation at all USAG RP Installations in accordance with ATTACHMENT A. ATTACHMENT A subject to unilateral changes as determined by the contracting officer. The type and quantities of the containers as well as the pick-up frequency must be in accordance with ATTACHMENT A. Additional locations, permanent removals, increasing or decreasing pick- up frequencies, replacement of bins, containers, and compactors must be coordinated with and pre-approved by the COR and KO and may require a contract modification.

The contractor shall service each bin, container, and compactor within one 1 (one) workday after notification from the COR.

The COR will provide timely feedback to the Contractor when overflow situations exist at any location to immediately remedy the overflow and to adjust bin / container / compactor type or numbers to accommodate the specific demands at each location. The Contractor shall service each full bin / container / compactor within one (1) workday after notification from the COR. The bins / containers / compactors shall be fully marked and identified with the Contractor's name, telephone number, and any other identifier to identify and account for property (see ATTACHMENT C). The Contractor shall provide the permanent bins / containers / compactors in one color for one waste stream. For example, blue = paper, yellow = plastic, etc.

5.2 Recurring Services: The Contractor shall provide collection, transportation-, and recycling / disposal services.

5.3 Equipment and Services:

5.3.1 Collection Bins / -Containers / -Compactors, Pick-ups, Transportation, Recycling / Disposal, Treatment, and Segregation Services: The Contractor shall provide permanent and time-limited recycling bins, containers, compactors, and services. The bins, containers, and compactors shall be in a good shape, maintained, labeled (ATTACHMENT C), and shall be in compliance with all German law specifications and safety standards at all times. The contractor shall factor in the refund amount, when applicable, per the estimated quantities identified in ATTACHMENT B, Statement of Services. (A.011)

5.3.2 Paper & Cardboard Disposal (Bins / Containers / Compactors): The Contractor shall provide and service permanent and time-limited (on-call) closed bins / containers / compactors (press containers) with of appropriate capacity for the collection of mixed paper and cardboard as outlined in ATTACHMENT A. The bins / containers / compactors shall be serviced in accordance with ATTACHMENT B. This includes the rental, maintenance, movement, and replacement. Bins / containers / compactors shall be labeled in accordance with ATTACHMENT C and fully marked and identified with the Contractor's name, telephone number, and any other identifier to identify and account for property. The containers shall be in compliance with all German law specifications and safety standards. (A.011)

5.3.3 Plastic, mixed Disposal (Bins / Container / Compactor): The Contractor shall provide and service permanent and time-limited (on-call) closed bins / containers / compactors (press containers) with lids of appropriate capacity for the collection of mixed plastic as outlined in ATTACHMENT A. The bins / containers / compactors shall be serviced in accordance with ATTACHMENT B. This includes the rental, maintenance, movement, and replacement. Bins / containers / compactors shall be labeled in accordance with ATTACHMENT C and fully marked and identified with the Contractor's name, telephone number, and any other identifier to identify and account for property. The containers shall be in compliance with all German law specifications and safety standards. (A.011)

5.3.4 Scrap Wood (treated and untreated) Disposal: The Contractor shall provide and service permanent and time-limited (on-call) closed containers with lids for the collection and removal of scrap wood (treated and untreated) as outlined in ATTACHMENT A. The containers shall be serviced in accordance with ATTACHMENT B. This includes the rental, maintenance, movement and replacement. All containers shall be labeled in accordance with ATTACHMENT C and fully marked and identified with the Contractor's name, telephone number, and any other identifier to identify and account for property. The containers shall be in compliance with all German law specifications and safety standards. (A.011)

5.3.5 Scrap Metal, mixed Disposal: The Contractor shall provide and service permanent and time-limited (on-call) closed containers for the collection of mixed metals as outlined in ATTACHMENT A. The containers shall be serviced in accordance with ATTACHMENT B. This includes the rental, maintenance, movement, and replacement. All containers shall be labeled in accordance with ATTACHMENT C and fully marked and identified with the Contractor's name, telephone number, and any other identifier to identify and account for property. The containers shall be in compliance with all German law specifications and safety standards. (A.011)

5.3.6 Wheels & Tires, with and without Rims Disposal: The Contractor shall provide and service permanent and time-limited (on-call) closed containers with lids for the collection and removal of wheels & tires with and without rims as outlined in ATTACHMENT A. The containers shall be serviced in accordance with

ATTACHMENT B. This includes the rental, maintenance, movement, and replacement. All containers shall be labeled in accordance with ATTACHMENT C and fully marked and identified with the Contractor's name, telephone number, and any other identifier to identify and account for property. The containers shall be in compliance with all German law specifications and safety standards. (A.011)

5.3.7 Scrap Electronics Disposal: The Contractor shall provide and service permanent and time-limited (on-call) closed containers with lids for the collection of scrap electronics as outlined in ATTACHMENT A. The containers shall be serviced in accordance with ATTACHMENT B. This includes the rental, maintenance, movement, and replacement. All containers shall be labeled in accordance with ATTACHMENT C and fully marked and identified with the Contractor's name, telephone number, and any other identifier to identify and account for property. The containers shall be in compliance with all German law specifications and safety standards. (A.011)

5.3.8 Glass Bottles Disposal: The Contractor shall provide and service permanent and time-limited (on-call) closed containers with lids for the collection of glass bottles as outlined in ATTACHMENT A. The containers shall be serviced in accordance with ATTACHMENT B. This includes the rental, maintenance, movement, and replacement. Glass bottles shall be collected by color in sets consisting of three separated containers (green, brown, and clear). All containers shall be labeled in accordance with ATTACHMENT C and fully marked and identified with the Contractor's name, telephone number, and any other identifier to identify and account for property. The containers shall be in compliance with all German law specifications and safety standards. (A.011)

5.3.9 Portable Step Pedestals: The Contractor shall provide, service, maintain, and move portable step pedestals. Portable step pedestals are set next to selected high containers throughout the affected USAG RP Installations in coordination with the COR. (A.011)

5.3.10 Time Limited ("On Call") Bins / Containers / Compactors: The Contractor shall provide and service various closed time-limited, bins, containers, and compactors ("On Call") by request from the COR for collection and removal of all types of waste as described above. The Contractor shall provide the bin(s) / container(s) / compactor(s) and / or service within 1 (one) workday after notification from the COR. The cost of this line item shall include all costs for rental, maintenance, movement, and replacement. All bin(s) / container(s) / compactor(s) shall be labeled in accordance with ATTACHMENT C and fully marked and identified with the Contractor's name, telephone number, and any other identifier to identify and account for property. The bins / containers / compactors shall comply with all German law specifications and safety standards. The Government anticipates approximately forty-eight (48) "On Call" actions per year. The Contractor shall price it per unit "On Call" service in accordance with ATTACHMENT B, in the row labeled, "Time Limited Mulde & GAB, all sizes and type of waste". (A.011)

PART 6 - APPLICABLE PUBLICATIONS

6. Applicable Publications (Current Editions)

6.1 Contractor Adherence: The Contractor shall abide by all Host Nation- and locally applicable laws, regulations, publications, manuals, policies, accident prevention regulations of the “Employees Liability Insurance Associations” (“Unfallverhütungsvorschriften der Berufsgenossenschaften”), and procedures affecting this contract.

PART 7 - ATTACHMENTS LIST

7. Attachment List:

- 7.1 ATTACHMENT A - USAG RP Recycling Collection Pickup Schedule**
- 7.2 ATTACHMENT B - Statement of Services**
- 7.3 ATTACHMENT C - Container Labeling**
- 7.4 ATTACHMENT D - Recycling Balance**

TECHNICAL EXHIBIT A

Performance Requirements Summary (PRS)

<u>PERFORMANCE OBJECTIVE</u>	<u>STANDARD</u>	<u>PERFORMANCE THRESHOLD ACCEPTABLE QUALITY LEVELS (AQLs)</u>	<u>METHOD OF SURVEILLANCE</u>
<u>1) PWS Part 1 General Information</u> Contractor shall comply with PWS provisions relating to Management and Administration	Inspection Checklist and Surveillance Summary Report Pass / Fail criteria Document Number:	>95% Percent Total Overall PRS Inspection Checklist Compliant Rate	100% Inspection Using COR Inspection Checklist and Surveillance Summary Report
<u>2) PWS Part 1 General Information</u> Contractor shall comply with PWS provisions relating to Management and Administration processes	Surveillance Process Audits	0 Safety or Environmental Discrepancies < 1 Technical Discrepancies	Periodic Inspection
<u>3) PWS Part 3 Government Property and Services</u> Contractor shall comply with PWS provisions relating to Government Furnished Item and Services	Inspection Checklist and Surveillance Summary Report Pass / Fail criteria Document Number:	> 95 Percent Total Overall PRS Inspection Checklist Compliant Rate	100% Inspection Using COR Inspection Checklist and Surveillance Summary Report
<u>4) PWS Part 3 Government Property and Services</u> Contractor shall comply with PWS provisions relating to Government Furnished Items and Services processes	Surveillance Process Audits	0 Safety or Environmental Discrepancies < 1 Technical Discrepancies	Periodic Inspection
<u>5) PWS Part 4 Contractor Furnished Items and Services</u> Contractor shall comply with PWS provisions relating to Contractor Furnished Items and Services	Inspection Checklist and Surveillance Summary Report Pass / Fail criteria Document Number:	> 95 Percent Total Overall PRS Inspection Checklist Compliant Rate	100% Inspection Using COR Inspection Checklist and Surveillance Summary Report

6) PWS Part 4 Contractor Furnished Items and Services Contractor shall comply with PWS provisions relating to Contractor Furnished Items and Services processes	Surveillance Process Audits	0 Safety or Environmental Discrepancies < 1 Technical Discrepancies	Periodic Inspection
7) PWS Part 5 Specific Tasks Contractor shall comply with PWS provisions relating to Specific Tasks operations	Inspection Checklist and Surveillance Summary Report Pass / Fail criteria Document Number:	> 95 Percent Total Overall PRS Inspection Checklist Compliant Rate	Periodic Inspection
8) PWS Part 5 Specific Tasks Contractor shall comply with PWS provisions relating to Specific Tasks operations	Surveillance Process Audits	0 Safety or Environmental Discrepancies < 1 Technical Discrepancies	Periodic Inspection
8) PWS Part 5 Specific Tasks Contractor shall comply with PWS provisions relating to Specific Tasks processes	Surveillance Process Audits	0 Safety or Environmental Discrepancies < 1 Technical Discrepancies	Periodic Inspection

TECHNICAL EXHIBIT B

Deliverables Schedule

<u>A</u>	<u>Frequency</u>	<u># of Copies</u>	<u>Medium/Format</u>	<u>Submit to</u>
A.001 Report Phase In and Phase Out (Para 1.7.1)	Commencement Report – Five (5) calendar days after Phase In and/or Phase Out period begins. Completion Report – Five (5) calendar days after Phase In/Phase Out completion.	1	Electronic delivery	KO and COR
A.002 Assign PM and alternate PM (Para 1.7.2)	Post Award Conference	1	Electronic delivery	COR
A.003 Quality Control Plan (Para 1.7.8)	Fourteen (14) days after contract award.	1	Electronic delivery	KO via the COR
A.004 Certificate of Good Conduct or “Führungszeugnis” (Para 1.7.12)	Five (5) days after contract award and at least five (5) days prior to any personnel change.	1	Electronic delivery	COR
A.005 Waste Management Company (“Entsorgungsfachbetrieb”) certificates (Para 1.7.16)	Post Award Conference, renewals, and at the begin of each option year / POP	1	Electronic delivery	COR
A.006 Accident Report (Para 1.7.25)	One (1) day after accident occurs	1	Electronic delivery or hardcopy	COR
A.007 Method of recycling or disposal. Attachment D Recycling Balance (Para 1.7.27)	Quarterly, until the 10 th day of the new Quarter / End of POP	1	Electronic delivery	COR
A.008 Names, addresses, etc. of all Subcontractors and Partners and changes of company structure (Para 1.7.27)	Day of contract awarded and after changes within 5 workdays	1	Electronic delivery	KO and COR

A.009 Provide monthly invoices (Para 1.7.27)	Until the 8th workday of the month following the services	1	Electronic delivery and hard copy	COR
A010 Required plans and training (Para 1.9.2)	Within 30 (thirty) calendar days of contract award. Within 30 (thirty) days of completion	1	Electronic delivery	KO and COR
A011 Provide equipment and services (bins/containers/compactors) (Para 5.3.1 to 5.3.10)	30 (thirty) days beginning 28-Mar-25 and on-call	1	Electronic delivery	KO and COR